

		Corporations Code section 1702 provides in relevant part: If the agent for service of process is a natural person and cannot be found with due diligence at the address stated in the designation . . . and if no one of the officers or agents of the corporation . . . can be found after diligent search and it is so shown by affidavit to the satisfaction of the court, then the court may make an order that service be made by personal delivery to the Secretary of State or to an assistant or deputy secretary of state” (Corp. Code, § 1702; <i>see also</i> Code Civ. Proc., § 416.10 [providing manners of effecting service on corporation].) Here, the corporate defendant Ellis & Son Trucking, Inc., is a domestic corporation. (S. Mancinelli Decl. [ROA # 20] ¶ 2.) The court finds Plaintiff exercised reasonable diligence in attempting to serve the corporate defendant’s agent for service of process at the address designated for service . (See S. Mancinelli Decl. [ROA # 40] ¶¶ 3-4.) Plaintiff also establishes that no officer or agent of Defendant Ellis & Son Trucking can be found after diligent search. (D. Mancinelli Decl. [ROA # 42] ¶¶ 2-3; S. Mancinelli Supp. Decl. ¶¶ 5-10.) The moving party is ordered to give notice. <u>Case Management Conference</u> The Case Management Conference is continued to July 16, 2026, at 9:00 a.m. in this department. Plaintiff to give notice.
6	Alayarian Company, a California Corporation v. VMA Harbor Place Holding Company, LLC	The Motion to Compel Response to Form Interrogatories brought by Defendant VMA Harbor Place Holding Company, LLC is DENIED, without prejudice, due to lack of service. While the instant motion is accompanied by a Proof of Service, which purports to have completed email service on Plaintiff, on March 26, 2026, the Proof of Service was not executed under penalty of perjury, as required. (See Code Civ. Proc., § 1013b, subd. (c) and Code Civ. Proc., § 1010.6, subd. (e)(2)(B).) Pursuant to Code of Civil Procedure section 2015.5, “[w]henever...any matter is required or permitted to be supported, evidenced, established, or proved by the sworn statement, declaration, verification, certificate, oath, or affidavit, in writing of the person making the same,” such document must be executed under penalty of perjury. (Code Civ. Proc., § 2015.5, subd. (a).) A declaration which is not executed in compliance with Code of Civil Procedure section 2015.5, “cannot be used as evidence.” (<i>Kulshrestha v. First Union Commercial Corp.</i> (2004) 33 Cal.4th 601, 618.) Additionally, as the instant motion has not been opposed by Plaintiff, there has been no waiver of any defect in service. The moving party to give notice.